

Smt. Gayatri Gunjan and 4 Others v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 15 February 2023 · Writ - C No. 31472 of 2022 · **Writ disposed without opinion on merits; petitioners may file paragraph 6.8 objections within four weeks, to be decided after hearing within six weeks; no coercive action for ten weeks or till that decision.**

HEADNOTE

Where consumers seek certiorari against a post-temporary-disconnection intimation dated 4 August 2022 creating a demand of Rs 10,82,745 and mandamus to restore supply, and the licensee answers that a domestic connection was used commercially, that an FIR was lodged on 11 July 2018 for an act under section 135(1)(e) of the Electricity Act, 2003, and that an assessment of Rs 10,82,037 was made after notice, the writ court will not decide those merits. It holds that the consumers have a remedy of objections under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, and disposes of the petition with liberty to raise all objections before the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Govardhan, Mathura, within four weeks. If filed in time, the objection is to be decided in accordance with law after a hearing within the next six weeks, unless another legal impediment exists. No coercive action on the 4 August 2022 order for ten weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Smt. Gayatri Gunjan and four others petitioned the Allahabad High Court to quash respondent no. 3's order dated 4 August 2022 and to restore their electric connection. Listings on 25 November 2022 and 1 February 2023 only sought instructions and, after non-compliance, a personal affidavit from respondent no. 3.

Respondent no. 3, the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Electricity Distribution Division, Govardhan, Mathura, filed that counter on 14 February 2023. He stated that the petitioners held a domestic connection, were found using electricity commercially, and that the connection was temporarily disconnected. He said an FIR was registered after information of theft was sent to the police on 11 July 2018 (letter no. 2564/15), that the act fell under section 135(1)(e) of the Electricity Act, 2003, and that after notice of hearing an assessment of Rs 10,82,037 was made on the inspection report. The Court treated the impugned paper as a post-temporary-disconnection intimation dated 4 August 2022 creating a demand of Rs 10,82,745.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Objections under paragraph 6.8 are the remedy against a post-temporary-disconnection intimation creating a demand; writ disposed without merits, with a time-bound hearing and a stay of coercive action

QUESTION

Will the writ court quash a post-temporary-disconnection intimation that creates a money demand, and restore supply, or leave the consumer to objections under paragraph 6.8?

HOLDING

The consumer is left to paragraph 6.8. Against the post-temporary-disconnection intimation dated 4.8.2022 creating a demand of Rs 10,82,745, the petitioners have a remedy to file objections under paragraph 6.8 of the U.P. Electricity Supply Code, 2005. Without expressing any opinion on the merits, the writ is disposed of with liberty to raise all objections before the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Electricity Distribution Division, Govardhan, Mathura, within four weeks, along with a certified copy of the order. If the objection is filed in time, respondent no. 3 shall decide it in accordance with law after a reasonable opportunity of hearing, within the next six weeks, provided there is no other legal impediment. For ten weeks or until that decision, whichever is earlier, no coercive action shall be taken pursuant to the order dated 4.8.2022. ¶ 4-6

QUALIFIER

The Court did not decide the licensee's plea of commercial use of a domestic connection, whether section 135(1)(e) was attracted, the difference between the pleaded assessment of Rs 10,82,037 and the demand of Rs 10,82,745, or the prayer for restoration.

FLAG Extract is unnumbered. Paras are sequential blocks of the operative order dated 15.2.2023, from 'Heard learned counsel'. The Court said 'paragraph 6.8' and did not name a sub-clause. Orders of 25.11.2022 (Siddhartha Varma and Ajit Singh, JJ.) and 1.2.2023 (Surya Prakash Kesarwani and Jayant Banerji, JJ.) are interlocutory. No precedent is cited. Section 135(1)(e) appears only in the licensee's counter.

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ against the 4.8.2022 post-temporary-disconnection intimation and for restoration was disposed of without opinion on merits, by giving liberty to file objections under paragraph 6.8 before the Executive Engineer. ¶ 4-5

assessment-6.8-alternate-remedy The demand recited by the Court (Rs 10,82,745) and the assessment pleaded by the licensee (Rs 10,82,037, said to follow an inspection and a section 135(1)(e) FIR) were not examined. The consumer was relegated to a paragraph 6.8 objection, to be decided after hearing within six weeks if filed within four weeks. ¶ 3-5

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the paragraph 6.8 objection is filed within four weeks with a certified copy of the order, respondent no. 3 must decide it in accordance with law after a reasonable opportunity of hearing within the next six weeks, unless another legal impediment exists. No coercive action on the 4.8.2022 order for ten weeks or until that decision, whichever is earlier. The order does not use the words 'speaking' or 'reasoned'. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DOMESTIC CONNECTION WAS USED FOR A COMMERCIAL PURPOSE, AND WHETHER THE ASSESSMENT OF RS 10,82,037 OR THE DEMAND OF RS 10,82,745 IS CORRECT

The Court expressly declined to express any opinion on the merits and left every objection to respondent no. 3 under paragraph 6.8. ¶ 3-5

NOT DECIDED — WHETHER THE USE WAS THEFT UNDER SECTION 135(1)(E) OF THE ELECTRICITY ACT, 2003, AS THE LICENSEE PLEADED, RATHER THAN A MATTER FOR PARAGRAPH 6.8

Section 135(1)(e), the 11.7.2018 intimation (letter no. 2564/15), and the FIR appear only in the counter affidavit. The Court did not construe them and still directed paragraph 6.8 objections. ¶ 3-4

NOT DECIDED — RESTORATION OF THE ELECTRIC CONNECTION

Prayed as mandamus. The operative order stays coercive action on the 4.8.2022 order; it does not direct restoration. ¶ 2, 6

NOT DECIDED — THE SHOW-CAUSE FOR NON-COMPLIANCE OF THE ORDER DATED 25.11.2022

Directed on 1.2.2023 by personal affidavit and personal presence. On 15.2.2023 the counter was on record and the writ was disposed of without a finding on that default.